

Sharafat Ulla (since deceased) v. Purvanchal Vidhut Vitrana Nigam Ltd.

High Court of Judicature at Allahabad · Division Bench · 9 July 2026 · Writ-C No. 20071 of 2026 · **Writ petition dismissed.**

HEADNOTE

Clause 6.5(b)(i) of the U.P. Electricity Supply Code, 2005 grants only a seven-day window after a bill is revised on the consumer's objection, during which late payment surcharge is not leviable. That limited allowance does not assist a persistent defaulter who paid nothing from the 1993 sanction of the connection until disconnection in 2006 and who now seeks to escape interest on a reduced arrears-and-fixed-charges bill. Writ petition dismissed.

FACTUAL SUMMARY

The petitioner's electricity connection, sanctioned at 2 kW on 20 October 1993, was disconnected in December 2006. The respondents found that no dues had been paid throughout that period. Faced with a demand of ₹3,55,671 for consumption arrears and fixed charges, he challenged an undated order of the Executive Engineer, Electricity Distribution Division, Karela Bag, Prayagraj, which had partly allowed his claim and reduced the bill to that figure, payable within 15 days. He contended that no interest could be charged because the revision claim had been found valid.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5(b)

Seven-day late-payment-surcharge holiday after bill revision — inapplicable to persistent defaulter

HOLDING

Clause 6.5(b)(i) of the U.P. Electricity Supply Code, 2005 makes only a small allowance: on revision of a bill upon the consumer's objection, seven days are allowed for payment, and late payment surcharge does not run in that interval. The petitioner's case is not of that kind. He is a persistent defaulter. The Court declined to interfere. Writ petition dismissed. ¶ 4-5